

**IN THE COURT OF XLII ADDITIONAL CITY CIVIL AND
SESSIONS JUDGE, BENGALURU (CCH-43)**

- : PRESENT :-

**LAKSHMINARAYANA BHAT K.,
XLII Addl. City Civil & Sessions Judge,
Bengaluru City.**

Dated this 24th day of August, 2023.

EXECUTION CASE NO.565/2023

Decree Holders :

1. Sri.K.Nrashingh Rao S/o. Late Krishnoji Rao, 57 Years, R/o.No.F9, Ward No.112, No.202, Domalur BDA Plot, 2nd Stage, 3rd Phase, Domlur Bus Stop, Bengaluru – 71.
2. Smt.Sapna D/o.Narasingh Rao, W/o.Vivek Khandelwal, 30 Years, R/o.Flat No.301, No.23, Asharaya Layout 2nd Stage, Mahadevapura, Hoodi, Bengaluru – 48.
3. Sri.N.Ajay S/o. Narasingh Rao, 28 Years, R/o.No.F9, Ward No.112, No.202, Domalur BDA Plot, 2nd Stage, 3rd Phase, Domlur Bus Stop, Bengaluru – 71.

[By Sri.M.N.Munireddy, Advocate]

/ VERSUS /

Judgment Debtor :

Sri.K.C.Varghese, 59 Years, S/o. Late
K.O.Chalkkumy, R/o.Flat No.S.0001,
Second Floor, No.9, Meljo Enclave, 6th
Main, 3rd Phase, SRO Quarters, Domluru
BDA Layout, Bengaluru – 560 071.

[By Sri.Ramesh Babu, Advocate]

ORDER

The decree holders No.1 to 3 have filed the present petition under Order XXI Rule 11 of Code of Civil Procedure praying an order against the judgment debtor for quit and delivery of the possession of the decree schedule property.

2. The decree holders were the plaintiffs and the judgment debtor was the defendant No.1 in O.S.No. 5556/2021 on the file of this Court. The decree holders have filed the said suit to pass a judgment and decree directing the defendants to vacate the suit schedule residential premises. As per order dated 13.8.2022 the said suit came to be settled between the parties before the Lok Adalath. Accordingly, the decree was drawn in terms of the compromise.

3. The decree schedule properties are the residential

flats situated in the building, BBMP Khata No.9/1-3, PID No.72-10-9/1-3, Municipal No.9, Site No.9, Ward No.72, Domlur Flat bearing Nos.G-001, F-001 and F-002 in the building 'Meljo Enclave' more fully described in the petition schedule. As per the terms of the compromise petition the judgment debtor has agreed to quit and deliver the vacant possession of the decree schedule property within 10.1.2013. The decree holders have produced the copy of the order sheet in O.S.No. 5556/2021, copy of the decree and compromise petition. As per the terms of the compromise petition condition Nos.3, 4 and 5 reads as follows :

“3. The defendant has agreed to quit and vacate the suit schedule premises within 10.01.2023 and handover the vacant possession of the suit schedule premises to the plaintiffs.

4. The plaintiffs have agreed to pay a total sum of Rs.13,00,000/- (Rupees Thirteen Lakhs only) to the defendant on vacating the three flats in the suit schedule premises in the following manner :

a. The plaintiffs have agreed to pay first installment of Rs.4,00,000/- (Rupees Four Lakhs only) to the defendant on the day of

vacating the one flat of the suit schedule premises.

- b. The plaintiffs have agreed to pay second installment of Rs.4,00,000/- (Rupees Four Lakhs only) to the defendant on the day of vacating the one flat of the suit schedule premises.
- c. The plaintiffs have agreed to pay last installment of Rs.5,00,000/- (Rupees Five Lakhs only) to the defendant on the day of vacating the one flat of the suit schedule premises.

5. The plaintiffs and defendants agree that, in case the defendants failed to vacate the suit schedule premises, within 10.01.2023, the plaintiffs are not entitled to pay the above said amount of Rs..13,00,000/- (Rupees Thirteen Lakhs only) and the plaintiffs are liberty to file the execution petition before this Hon'ble Court and take possession of the suit schedule premises, without the payment of said amount. Further, from 10.01.2023 on wards, the plaintiffs are entitled for damages at the rate of Rs.40,000/- (Rupees Forty Thousand only) per month from the defendant till the handing over of the suit

schedule premises.”

4. As per the aforesaid conditions, the decree holders have agreed to pay Rs.13 lakhs to the judgment debtor in three installments. However, it is important to make note of the fact that the date of payment of aforesaid amount in three installments and date of delivery of the vacant possession of the residential flats are not mentioned in the compromise petition. There is also condition stipulated in the agreement that if the judgment debtor fails to vacate the premises within 10.1.2013, he is liable to make payment of Rs.40,000/- per month as damages to the decree holders. As per the aforesaid condition, the decree holders are not liable to make payment of Rs.13 lakhs if the judgment debtor fails to vacate the three flat premises within 10.1.2013. But the judgment debtor is liable to make payment of Rs.40,000/- per month from 10.1.2013 till handing over possession of the decree schedule properties.

5. The decree holder has filed an affidavit along with the petition. In the said affidavit he stated that the judgment

debtor has failed to vacate the premises even though they were ready to make payment of Rs. 13 lakhs in compliance to the conditions of the decree. The decree holders have produced copy of the notice dated 22.11.2022 addressed to the judgment debtor along with memo dated 10.8.2023. They have not produced any documents in proof of for having sent the said notice to the judgment debtor through registered post. The judgment debtor has denied the receipt of the said notice. The notice contains an endorsement 'copy received' and whether the signature appearing in the said notice is of the judgment debtor, requires to be answered by the judgment debtor. According to the decree holders since the judgment debtor has failed to vacate the premises on or before the prescribed date 10-1-2013, at present they are not liable to make payment of Rs.13 lakhs in compliance of the terms and conditions of the compromise decree. They submitted that on the other hand the judgment debtor is liable to surrender the vacant possession of the premises.

6. In the petition and in the accompanying affidavit the decree holder has claimed recovery of Rs.25,000/- per month as

the damages for each decree schedule flats, totally Rs.75,000/- per month from the judgment debtor. But the said amount claimed in the petition is not the part and parcel of the compromise decree. As per the decree the judgment debtor is liable to make payment of total sum of Rs.40,000/- per month from 10.1.2013 till the delivery of vacant possession of the decree schedule premises. Therefore the claim of the decree holder at the rate of Rs.25,000/- per flat and Rs.75,000/- per month as damages from the judgment debtor is contrary to the decree and hence the prayer is not legally sustainable.

7. The present petition was filed on 24.2.2023. The judgment debtor in his objection statement has contended that he has complied the terms and conditions of the compromise decree. As per his contention he had delivered the possession of the decree schedule property on 10.1.2013. He submitted that as per the decree the decree holder is liable to make payment of advance amount of Rs.13 lakhs in terms of compromise petition.

8. From the aforesaid facts, the contents of affidavit,

execution petition and objection statement, it is made out that both the parties to the the present petition have not complied the terms and conditions of the decree. The decree holders have deliberately failed to comply the decree without making payment of Rs.13 lakhs to the judgment debtor. On the other hand, the judgment debtor has also not surrendered the possession of the decree schedule premises in favour of the decree holders on or before 10.1.2013. Hence, the judgment debtor is liable to make payment of Rs.40,000/- per month as damages to the decree holders from 10-1-2013 till he surrenders the vacant possession of the premises.

9. The terms and conditions of the compromise petition show that the parties to the suit have entered into compromise subject to certain conditions. Hence, both the parties are liable to comply their part of obligation towards other party. The matter is settled before the Lok Adalath. In the event the parties to the proceeding are allowed to take false and frivolous contentions as in the present case on hand by taking disadvantage to deceive the other party, the public will loose faith in the effect of compromise

decree before the Lok Adalath. There are always specific reasons for the parties entering into an agreement before the Lok Adath. It appears, the decree holders by misinterpreting the terms of the compromise presently in an advantageous position are trying to defeat the terms of the compromise to deceive the judgment debtor . The decree holders are trying to deceive the judgment debtor by carefully misusing the terms of the compromise decree without making payment of Rs.13 lakhs.

10. In the case on hand the facts and circumstances show that the decree holder has not offered to make payment of Rs. 13,00,000/- to the judgment debtor in three installments. Hence, the decree holders before seeking delivery of possession possession of the decree schedule property are required to deposit Rs.13 lakhs before the Court as agreed in the conditions 4(a) to 4(c) of the compromise petition. However they are at liberty to deduct the damages at the rate of Rs. 40,000/- per month from 10-1-2023 till the date of deposit.

11. The judgment debtor is also liable to make payment of Rs.40,000/-per month as damages to the decree holders from 10.1.2013 till he delivers the vacant possession of the decree schedule premises. The contention of the judgment debtor that he has surrendered the vacant possession of the decree schedule premises is also false. It appears he has taken such contention to avoid make payment of Rs.40,000/- per month as damages. In the above circumstances it is the duty of the Court in the interest of justice to protect the interest of both the parties to the proceeding. Hence, proceed to pass the following:

ORDER

The decree holders are directed to deposit Rs.9,80,000/- (nine lakhs eight thousand only) after deducting the monthly rent at the rate of Rs.40,000/- p.m. from 10.1.2023 to 10.9.2023, totally Rs.3,20,000/- from Rs.13.00 lakhs.

After depositing the said amount, the decree holders are entitled for a warrant to

seek vacant possession of the decree schedule
three flat premises.

(Dictated to the Judgment Writer, computerized by her,
the transcript corrected, signed and then pronounced by
me, in open court on this the **24th day of August 2023**).

(Lakshminarayana Bhat.K.),
XLII Addl. City Civil & Sessions
Judge, Bengaluru.